



POLICE DEPARTMENT

January 27, 2026

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-032471
Detective Steven Tatar	:	
Tax Registry No. 959287	:	
COD Quality of Life Division	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Dana K. Vincent, Esq.
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Civilian Complaint Review Board
100 Church Street, 10th Floor
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For the Respondent: Marissa Gillespie, Esq.
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To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Detective Steven Tatar, on or about July 23, 2023, at approximately 0112 hours, while assigned to the 60th Precinct and on duty, in the vicinity of the Northwest corner of West 17th Street and Surf Avenue, Kings County, wrongfully used force, in that Detective Tatar forcefully removed Complainant¹ from the vehicle by grabbing at Complainant's right arm and upper back, without police necessity.

P.G. 221-01, Page 3, Prohibition 2

FORCE GUIDELINES

P.G. 221-02, Paragraph 2

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on December 19, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The CCRB called no witnesses and relied upon body-worn camera video evidence. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty of the charged misconduct.

ANALYSIS

1. Introduction

This case involves the appropriateness of using of force to remove a motorist from a vehicle that had been stopped by police officers from the 60th Precinct's Public Safety Team. Based upon the totality of the evidence, I find that: (1) the force Respondent used was reasonable and necessary; (2) Respondent's actions were consistent with P.G. 221-02 guidance to use to use deescalation techniques when appropriate; and (3) the Right to Know Act does not explicitly, or

¹ The complainant's identity is known to the Tribunal.

implicitly, supersede a motorist's legal obligation to provide his driver's license, registration and proof of insurance in response to a request from a police officer.

2. Trial Evidence

The following is a summary of the relevant evidence presented at trial.

Complainant's Statement

On August 28, 2023, Complainant was interviewed over the phone by the CCRB regarding an allegation of misconduct on July 27, 2023. Complainant stated that on that date, at approximately 0100 hours, he was driving a car in the vicinity of West 17th Street and Surf Avenue after picking up food for his family. He stated that he pulled up behind what he believed to be an unmarked police vehicle at a stoplight. Complainant recalled observing another unmarked vehicle, approaching his car from the opposite direction, while "breaking all the red lights;" the occupants of this vehicle stopped, looked at his car, then made a "U-turn" to pull up behind him. Complainant stated that once the light changed to green, he drove through the intersection; the vehicle behind him then activated its lights, at which point he pulled over and rolled down his window² (CCRB Ex. 3, 3A at 2, 5-6, 14, 23).

Complainant stated that he heard the police officers say, "Wind down [your] f**king windows." He stated that as the police officers approached his car, they were yelling and screaming. He stated that he asked them, "Excuse me, this is how you speak to people? Can you speak to me with respect?" When he was again asked for his license and registration, he replied, "Can you speak to me with respect? What did I do? Explain to me what I did wrong, or what

² Complainant admitted in his statement that his car had a damaged left front headlight and factory tinted windows, over which he applied additional tinting. He described the tinting, or "light transmission percentage," at "30-35" on the front windshield, "20" on the side windows, and "five" on the rear window. He also stated that his car had one New Jersey license plate affixed to the rear bumper and the other displayed inside the car on the passenger side (*Id.* at 10-11). I take judicial notice that at the time of this incident, the state of New Jersey issued its registrants two license plates and required them to be displayed on the front and rear of the vehicle (N.J.S.A. 39:3-33).

law did I break, so we can be on the same page.” Complainant stated that he was asked a third time for his license and registration, after which Respondent entered his car through the passenger side, as other police officers opened the driver’s door, unfastened his seatbelt, and “pulled me out of my car for no reason” (*Id.* at 6, 21, 24). Complainant described the officer’s demeanor, and the way the other officers engaged with him, as “very disrespectful.” He also stated that he was punched and kicked after being pulled from the car (*Id.*, at 7, 21, 23, 27, 29-30).

Complainant detailed that at the time his car was stopped by the police, one unmarked vehicle was positioned in front of him and the second was behind him. He recalled that the police officers who approached his car emerged from both vehicles and that there were approximately “eight” male officers present. Complainant stated that police officers were positioned on both sides of his car and recalled that the officer who requested his license and registration was standing on the driver’s side. He stated while he had his license in his hand, he did not hand it over to the police officer because he “was just very aggressive and all I wanted was the respect back.” Complainant described the officers as being unrelentingly aggressive and stated that, following Respondent’s act of removing his seatbelt, the officer on the driver’s side “yanked [me] by my shirt and pulled [me] out of the car” (*Id.* at 5, 16-25).

Complainant testified that he was then thrown to the ground on his stomach, punched from behind, and had his hair pulled before being handcuffed. He stated further that once he was placed in the police vehicle, he saw that the car door had been left open; he then “stepped out of the car” and “stepped” toward the arresting officer because “what [he] was doing to [me] is very wrong.” Complainant stated that officers pushed him back into the vehicle and transported him to the 60th Precinct (*Id.* at 7, 26-28, 30-31, 34-36).

Body-Worn Camera Video Evidence

The following is a summary of Respondent's body-worn camera recording of the traffic stop with Complainant.

- 01:00–01:41** Respondent, the operator of the RMP, pulls over as his partner exits the vehicle. After backing the vehicle up a few feet, Respondent exits. One RMP is parked directly behind Complainant's car. Three police officers are positioned on the driver's side and two on the passenger's side as Respondent approaches. One police officer is heard speaking to Complainant through the open driver's window while Respondent briefly stands near the hood of the car.
- 01:42–02:04** The police officer speaking to Complainant opens the driver's door and repeatedly demands that he "step out" of the car. Complainant does not comply and responds, "Bro, you do not have to make this a problem!" As the police officer reaches into the car, while continuing to demand that Complainant step out, Respondent moves to the driver's side with the other police officers and asks about Complainant's ID. The police officer ordering Complainant out of his car raises his voice and attempts to forcefully remove him, assisted by two other police officers. Respondent then runs to the passenger side to assist.
- 02:05–02:22** Respondent opens the passenger door, reaches over the passenger seat, and places his right hand around Complainant's right arm to help push him out of the car; Complainant's left hand is not visible. Respondent repeatedly tells Complainant to "get out of the car." Complainant does not step out of his car and tenses his body as police officers attempt to remove him. A police officer on the driver's side places handcuffs on Complainant's left wrist. Complainant repeatedly asks, "What are you cuffing me for? Are you serious, bro!" and states, "I didn't even do nothing!" Respondent eventually gets Complainant's right arm behind his back as he is being removed from the car.
- 02:23–03:11** Respondent runs back to the driver's side of Complainant's car where police officers now have Complainant on the ground. Complainant resists efforts to get both arms behind his back and into handcuffs, repeatedly screaming as police officers demand that he put his hands behind his back. The police officers continue struggling with Complainant for close to a minute, until Respondent is finally able to fully cuff him. Complainant loudly screams "my hand!" and shouts, "y'all dead a** violated me for nothing, bro!" Respondent responds, "Yeah, don't fight with my partners then."

- 03:12–04:06** Respondent steps away as the police officers attempt to lift Complainant to his feet. Complainant continues to scream, “my hand!” When asked, “Why are you fighting,” Complainant responds, “I’m not fighting nobody! One of y’all punched me in my face!” He again screams, “my hand!” The police officers tell him to roll over and say, “Enough!” Complainant states, “y’all got it,” and Respondent replies, “I know we got it. Now that you’re in cuffs.” Complainant continues to complain, and one police officer tells him to “shut the f**k up.” This exchange continues until a police officer orders Complainant to “get up!” and pulls him to his feet.
- 04:07–04:54** Complainant’s pants are at his ankles. Police officers have him handcuffed behind his back and pressed against his car. Respondent briefly engages in a verbal exchange with Complainant, then walks to the open passenger door, turns on his flashlight, and briefly searches the passenger side of the car. Respondent returns to the driver’s side of the car, where police officers still have Complainant pinned against it, with his pants at his ankles, while attempting to shorten the handcuffs.
- 04:55–06:33** Complainant accuses someone of hitting him in the jaw. He asks Respondent, “Can you pull up my pants, please; man, to man.” Respondent replies, “Alright. Hold on.” Complainant then aggressively yells at a police officer behind him, imploring, “You do not have to manhandle me. You have me in handcuffs already!” He jerks his body backward to push the police officer off him and says, “Do not handle me,” as police officers hold tightly onto his arms. Complainant again states, “Whoever hit me, it’s cool.” Respondent replies, “Yeah, I’m the one that hit you. Next time don’t fight.” As Complainant is ushered backward toward the RMP, he again asks, “Can you pick up my pants?” Respondent tells the police officers escorting Complainant, “Hold on, let me get it.” He grabs Complainant by the shoulder and tells him, “You gotta stay still.” Complainant asks Respondent to speak to the police officer he accused of manhandling him, and Respondent offers to escort him to the RMP instead of that officer. The police officer does not allow Respondent take over.
- 06:33–08:09** Complainant becomes visibly angry and again shouts his frustrations. Police officers usher him to the rear of the RMP with Respondent present. As police officers unlock the door, Complainant complains about a screw in his foot. When instructed to get into the vehicle, Complainant does not do so and instead asks, “Can I turn around properly?” Police officers use their hands to guide him into the vehicle. Complainant stops, turns to face them, and twice states, “Stop manhandling me!” He is then pushed into the RMP by his torso. Police officers then attempt to secure him in the seat, and Complainant lunges out of the open door onto the ground. He is eventually brought back to his feet and secured in the back of the RMP.

Respondent's Testimony

Respondent testified that on July 27, 2023, he was assigned to the Public Safety Team at the 60th Precinct. He recalled that on that date, he and his partners, Police Officers Petronis and Cava, along with other members of the team who were in a separate vehicle, were working evening patrol. He explained that at approximately 0100 hours, while driving westbound on Surf Avenue, he noticed that his teammates were conducting a car stop. Respondent testified that it "appeared that the car wasn't stopping right away," though he recalled that upon further observation, the "vehicle did eventually come to a stop." He explained that he remained in his vehicle for close to a minute to ensure that Complainant's car did not flee while police officers were outside their vehicles; once he was satisfied that the car remained stationary, he exited his vehicle (T. 22-24).

Respondent recalled that his vehicle was "maybe three car lengths" away from the stopped car. As he approached, he heard Police Officer Riley ask Complainant for identification, which Complainant refused to provide. He then heard Police Officer Riley ask Complainant to step out of the car, which Respondent described as "a lawful order." He testified that Complainant did not cooperate with either the request to provide identification or the request to step out of the car. Respondent further recalled that Complainant's car was missing a front license plate and had heavy tints on all the car's windows (T. 24-25).

According to Respondent, police officers opened the driver's side door to remove Complainant from the car, to place him under arrest for obstructing governmental administration. Respondent testified that he ran to the passenger side of Complainant's car and opened that door. He explained that he did so because, in his experience, people who do not want to identify themselves "usually have a reason." He further testified that individuals who refuse to step out of

a car are often concealing something in their lap or “sitting on something,” which raised safety concerns (T. 25-26).

Respondent testified that, upon opening the passenger side door of Complainant’s car, he grabbed Complainant’s right wrist and upper right shoulder for “a couple of seconds at most,” explaining that he learned in the Police Academy the importance of controlling a person’s hands. At that point, Respondent and the other police officers were still unsure whether Complainant was armed, testifying that “things can escalate very quickly.” Respondent further testified that he was trained to use the minimum amount of force when ejecting someone from a car, stating that “the minimum amount of force is to grab their wrist and escort them out,” clarifying “that is exactly what I did here” (T. 27-31).

Respondent testified that later that evening, he returned to the command and had what he described as a “cordial” interaction with Complainant. He recalled that at some point, Complainant stated that he was “comfortable with [Respondent]” and asked if Respondent would walk him into the cell (T. 37-38).

On cross-examination, Respondent acknowledged being familiar with Patrol Guide procedure 221-02 and confirmed that he had been trained in the appropriate use of force, including deescalation (T. 39-42). While Respondent also acknowledged that police may not forcibly remove a person from a vehicle without legal justification to do so, he explained that he was permitted to ask any motorist to step out of their car and that it was Complainant’s refusal to do so, when ordered, that led to the use of force in this case (T. 43-44).

He testified that while he was in his RMP observing the other RMP pulling over Complainant, he did not notice anything unusual about Complainant’s car. He confirmed that he exited his vehicle only after Complainant had come to a full stop and conceded that the officers

who initiated the stop did not radio information to him regarding the reason for it (T. 44). He testified further that it was not until he stepped out of his vehicle and approached Complainant's car, did he notice the car's tinted windows and missing license plate (*Id.*).

Respondent acknowledged that when he stepped out of his vehicle, he saw five police officers positioned on either side of Complainant's car (T. 51). He denied hearing Complainant ask why he was being stopped, or stating, "you do not have to make a problem," but did hear the police officers request Complainant's identification several times (T. 52-53, 59-61). Respondent testified that he saw a police officer open the driver's door and agreed that at the time he did so, Complainant was not lunging at them (T. 55, 65-66). He acknowledged that he did not see Complainant reach for anything inside the car because he initially did not have a view of the driver; once the driver's door was opened and the other police officers were attempting to remove Complainant from the car, he entered the car through the front passenger door to push Complainant out of the car (T. 56-57, 63). Respondent testified that the officer who opened the driver's side door was not required to inform Complainant that he was being arrested for refusing to provide identification when requested (T. 64).

Credibility

In Complainant's hearsay statement to CCRB, he emphasized why he was offended by the police officers' posture toward him, but minimized his obligation to surrender his license and registration on demand. He admitted that he had the requested documents in his hand but made a conscious decision not to hand them to the police officer because he was dissatisfied with the level of courtesy he was shown. He also admitted to having heavily tinted windows, only one license plate on the rear bumper of the car and a non-working headlight, any one of which would warrant a traffic stop for suspected violations of the Vehicle and Traffic Law. Accordingly, the

probative value of his statement is limited to those aspects which are corroborated by the body-worn camera video evidence.

In contrast, Respondent testified at the trial in a forthright, candid manner. His testimony was corroborated by the body-worn camera video which was the sole evidence offered in support of the charge by CCRB. Having observed his demeanor, I find that his responses to questions posed during direct and cross-examination were succinct, logical and consistent with the independent evidence in the case. I therefore credit his testimony.

Use of Force Without Police Necessity

I find that CCRB has failed to meet its burden of proof by a preponderance of the relevant, credible evidence that Respondent used force without police necessity on July 27, 2023.

The uncontroverted video evidence establishes that Respondent assisted other officers engaged in a car stop of the driver, Complainant. CCRB did not contest the legality of the stop; it is therefore not at issue. It is also uncontroverted that Complainant was asked for his driver's license, registration and proof of insurance several times and refused to produce it. I note that the Vehicle and Traffic Law ("VTL") requires motorists in the State of New York to provide those documents upon demand (VTL §§ 312, 319-1). Finally, Respondent's body-worn camera video shows that his role in Complainant's removal from the car was limited to placing his hand on Complainant's right shoulder and upper back as other police officers removed him through the open driver's door.³

CCRB argues that the Right to Know Act requires police officers to provide the reason for a stop to a citizen upon request. In that regard, Administrative Guide procedure 304-11 is instructive. The procedure requires police officers, *at the conclusion of specified law*

³ While Respondent admitted to punching Complainant once while the other police officers struggled to place him in handcuffs, CCRB did not allege that this strike was misconduct.

enforcement activities (italics added), to: (1) identify themselves by name, rank, shield number and command; and (2) explain the reason for the law enforcement activity “unless providing this information would impair a criminal investigation, or exigent circumstances are present (*i.e.*, physical resistance, flight, imminent danger of physical injury or damage to property, or other factors make such procedure impractical)” (A.G. 304-11, page 1, paragraphs [1] and [3]).

The law enforcement activities set forth in the procedure are:

- a. Noncustodial questioning of individuals suspected of criminal activity (Level 2 Encounter);
- b. Stop where an officer has an individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime and where a reasonable person would not feel free to end the encounter (Level 3 Encounter);
- c. Frisk (Level 3 Encounter);
- d. Search of persons or property, including vehicles;
- e. Roadblock or checkpoint stops, including checkpoints related to enforcement of Article 31 of the Vehicle and Traffic Law (Alcohol and Drug-Related Offenses), but not including planned security checks of vehicles at sensitive locations or street closures for public events or emergencies⁴;
- f. Home search; and
- g. Assigned Detective Only: First in-person questioning of victims and/or witnesses to a crime.

(A.G. 304-11)

Under New York law, a police officer may stop a motor vehicle for a suspected traffic infraction if he has reasonable suspicion, based upon specific, articulable facts. A roadblock, or checkpoint, is a programmatic, non-arbitrary stop of vehicles for a specific public safety purpose. While the use of a roadblock constitutes a seizure under the Fourth Amendment to the United States Constitution, as well as Article 1, Section 12 of the New York State Constitution, it does not require reasonable suspicion or probable cause.

⁴ I note the language in paragraph (f) of the A.G. 304-11 “DEFINITION” section mirrors the language of Local Law 54 of 2018, commonly known as the Right to Know Act.

Accordingly, Administrative Guide procedure 304-11, and the Right to Know Act, upon which it is based, are silent on what obligations, if any, it imposes on police officers during traffic stops. Since A.G. 304-11 directs police officers to provide a reason for the stop at the conclusion of the law enforcement activity, for the sake of consistency, it makes sense to apply the standard uniformly to all stops, vehicular and pedestrian.

I find that under the facts of this case, at the time Complainant requested an explanation of why he was stopped, the vehicle stop had not concluded; in fact, it was Complainant's own refusal to provide his documents which prevented the stop from reaching its logical termination. Had he provided the requested documents to the police officers, he would have either been issued a traffic summons for a VTL violation or permitted to go about his business.

I further find that Complainant's refusal to comply with the police officers' lawful requests, while operating a motor vehicle with heavy window tints, at night, surrounded by six armed police officers, could reasonably raise their suspicions that he was about to flee, destroy evidence, or engage in an act of physical resistance. Accordingly, a reasonable police officer could believe that it was not yet safe to explain the reason for Complainant's stop to him, even if they considered providing that information before they were required to do so.

Furthermore, the right to be informed of the reason for the vehicle stop is not a condition precedent to the motorist's obligation to comply with the Vehicle and Traffic Law's unambiguous imperative to provide the specified documentation on demand during a traffic stop (V.T.L. §§ 312, 319-1). The language of the Right to Know Act does not explicitly create an exception to the motorist's obligations under the VTL; this Tribunal will not create and adopt such an illogical application of the statute.

CCRB has also argued that Respondent committed misconduct because he did not utilize de-escalation techniques before employing force, as purportedly required by Patrol Guide procedure 221-02. Under this procedure, deescalation is defined as:

“[t]aking action to stabilize the situation and reduce the immediacy of the threat so that more time, options, and/or resources become available (e.g., tactical communication, requesting a supervisor, additional MOS and/or resources such as Emergency Service unit or Hostage Negotiation Team, etc.). The goal is to gain the voluntary compliance of the subject, when appropriate and consistent with personal safety, to reduce or eliminate the necessity to use force.”

(P.G. 221-02).

The procedure further instructs Members of Service to:

1. Take necessary action to protect life and personal safety of all people present, including subjects being placed into custody.
2. Utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, and increase the likelihood of gaining the subject’s voluntary compliance.
3. Isolate and contain the subject, if appropriate
4. Immediately request a supervisor to respond, as soon as appropriate and safety permits
5. Request additional members, as necessary to control situation
6. Request the response of the Emergency Service Unit, if appropriate.

(P.G. 221-02, pages 1-2, paragraphs [1]-[6]).

A note to this procedure provides additional guidance:

“MOS should consider whether a subject’s lack of compliance is a deliberate attempt to resist, or alternatively, an inability to comply, resulting from factors, including, but not limited to, medical condition, mental impairment, developmental disability, physical limitation, language barrier, and/or drug interaction.”

(P.G. 221-02, page 2, note 1).

Based upon the totality of the circumstances, I find that Respondent, the other police officers who initiated the car stop, and the police officers who arrived at the scene to support the car stop, engaged in several actions which could be considered preemptive de-escalation, consistent with P.G. 221-02. First, they assembled six uniformed police officers around

Complainant's car, which objectively provided a measure of safety for both the police officers and Complainant. A reasonable person who was the subject of a car stop, observing the presence of that number of police officers, would conclude that any type of evasive action would likely be unsuccessful and would, moreover, increase the duration and intensity of the interaction. From the police officers' perspectives, the number of similarly armed, trained Members of Service should permit them to operate at the lowest level of engagement, without undue concern that the situation could escalate and they be placed in danger by the actions of an erratic suspect.

Second, there was a supervisor present during the stop. I find that the assignment of a supervisor to a Public Safety Team is a conscious decision to provide a leadership presence to police officers who routinely encounter fluid situations, often requiring complex choices which must nevertheless be consistent with the high standards of this Department.

Third, Complainant's statement to CCRB establishes that he was asked for his license and registration at least three times; Respondent testified that he heard police officers request those documents from Complainant several times. I find the decision to continue to request identification documents after the initial request had been rebuffed by Complainant, rather than to immediately escalate the tenor of the encounter after Complainant's first refusal, was also a means of de-escalation.

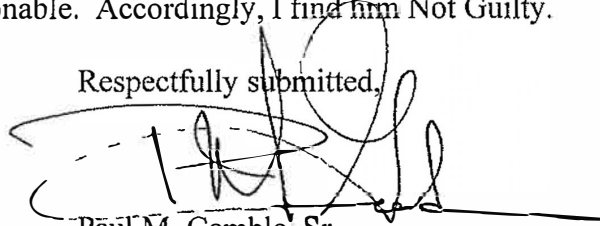
Despite these efforts to gain voluntary compliance from Complainant before resorting to the use of force, Complainant remained obdurate in his refusal to provide the documents he was required to present, according to law, unless he was addressed in a manner he deemed "respectful." While it is true that Members of Service are expected to display professionalism and courtesy in all their interactions with the public, if they fall short of that standard, the remedy is to file a complaint after the encounter concludes. When Complainant continued his refusal to

surrender his documents, then compounded the situation by refusing to step out of his car, he raised an existential question for every police officer on that scene: why is he refusing to provide his documents? On August 28, 2023, Complainant told CCRB what his position was but, at 0100 hours on July 27, 2023, his deliberate act of noncompliance invited speculation as to his motivation.

For Members of Service, a citizen extending a citizen-police encounter, at night, for no apparent reason other than a perceived affront, could reasonably make them wary that Complainant had a more sinister motive for doing so. Having provided him numerous opportunities to do what the law already required him to, it was reasonable for Respondent, and the other police officers present, to gain control of the encounter by establishing physical control over Complainant, including the limited use of force, to bring the encounter to a safe conclusion.

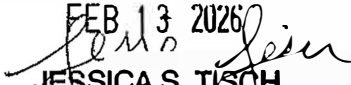
Based upon the totality of the circumstances, I find the force Respondent used to assist in Complainant's removal from his car was reasonable. Accordingly, I find him Not Guilty.

Respectfully submitted,



Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPROVED

FEB 13 2026

JESSICA S. TISCH
POLICE COMMISSIONER